

24STCV04316 24STCV04316

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-07-01

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Case Number: 24STCV04316 Hearing Date: July 1, 2026 Dept: 408

1. Plaintiff Joshua

Dewey Stockton's Motion to Consolidate is DENIED.

2. Plaintiff Joshua

Dewey Stockton's Motion to Transfer is DENIED.

I.

BACKGROUND

On February 21, 2024, Plaintiff Joshua Dewey Stockton ("Plaintiff"), in propria persona, filed an action against Defendant Los Angeles County ("County") arising from criminal proceedings against Plaintiff.

On March 4, 2024, Plaintiff filed a First Amended Complaint ("FAC").

On May 3, 2024, following stipulation by the parties, Plaintiff filed a Second Amended Complaint ("SAC").

On

September 5, 2024, the court sustained the County's Demurrer to Plaintiff's SAC with leave to amend.

On

September 24, 2024, Plaintiff filed a Third Amended Complaint ("TAC").

On

January 21, 2025, Plaintiff filed a Fourth Amended Complaint ("4AC") against Defendants the County, City of Los Angeles ("City"), Los Angeles Police

Department ("LAPD"), and Miranda Taylor Cosgrove ("Cosgrove", collectively "Defendants").

On

February 28, 2025, the City and LAPD filed an answer to Plaintiff's 4AC.

On

April 3, 2025, the court sustained the

County's Demurrer to Plaintiff's 4AC and granted the County's Motion to Strike portions of Plaintiff's 4AC.

On April 16, 2025, following

stipulation by the parties, the court dismissed the County with prejudice.

On July 22, 2025, the court granted the

City's Motion for Judgment on the Pleadings as to Plaintiff's 4AC.

On August 5, 2025, the court dismissed

the City with prejudice.

On April 27, 2026, the court denied

Plaintiff's Motion for Leave to Amend the 4AC.

On May 11, 2025, Plaintiff filed this

Motion to Consolidate and Motion to Transfer. No opposition or other responsive pleading has been filed.

II.

MOTION TO CONSOLIDATE

A.

Legal Standard

"When actions involving a

common question of law or fact are pending before the court, it may order a

joint hearing or trial of any or all the matters in issue in the actions; it

may order all the actions consolidated and it may make such orders concerning

proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).)

There are two types of

consolidation: a complete consolidation for all purposes, and a more limited

consolidation for trial or certain other specific purposes. (Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1147; Sanchez v. Super. Ct. (1988) 203 Cal.App.3d 1391, 1396.) When cases are consolidated for all purposes, “the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment.” (Hamilton, supra, 22 Cal.4th at 1147; Sanchez, supra, 203 Cal.App.3d at 1396.) In a consolidation for limited purposes, “the two actions remain otherwise separate.” (Hamilton, supra, 22 Cal.4th at 1147.)

“Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only.” (Hamilton, supra, 22 Cal.4th at 1149.) The trial court should not consolidate actions where prejudice would result to any party. (State Farm Mutual Auto. Ins. Co. v. Superior Court (1956) 47 Cal.2d 428, 430.)

California Rules of Court, rule 3.350(a), sets forth a number of procedural requirements for a motion to consolidate. “A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated.” (Cal. Rules of Court, rule 3.350(a)(1)(A)–(C).)

B. Discussion

Pursuant to Code of Civil Procedure section 1048, Plaintiff moves to consolidate Case No. 26WHRO00581 with the instant action.

1.

Request for Judicial Notice

Plaintiff's

Request for Judicial Notice is granted. “A court may properly take judicial notice of its own records. (Evid. Code, § 452, subd. (e).)” (Garcia v. Sterling (1985) 176 Cal.App.3d 17, 21.) This court may also take judicial notice of the records of any court of record of the United States. (Evid. Code, § 452, subd. (d).)

2.

Merits

“Consolidation is not a matter of right; it rests solely within the sound discretion of the trial judge. . .” (Fisher v. Nash Bldg. Co. (1952) 113 Cal.App.2d 397, 402.) The purpose of consolidation is to enhance trial court efficiency by avoiding unnecessary duplication of evidence and the danger of inconsistent adjudications. (Todd-Stenberg v. Dalkon Shield Claimants Trust (1996) 48 Cal.App.4th 976, 978-979.)

The court finds that consolidation is not warranted. As an initial matter, Plaintiff provides no evidence that the cases were deemed related and are currently pending in the same department before the court could even consider consolidating. (Los Angeles Sup. Ct. Local Rules, Rule 3.3, subd. (g) [“Cases may not be consolidated unless they are in the same department. A motion to consolidate two or more cases may be noticed and heard after the cases, initially filed in different departments, have been related into a single department, or if the cases were already assigned to that department.”].) Plaintiff also fails to comply with California Rules of Court, rule 3.350 in failing to provide the information required of each case. Plaintiff also fails to demonstrate that the cases could be related when Case No. 26WHRO00581 involves a wholly separate issue regarding a civil harassment claim and a request for a restraining order against Plaintiff. (RJN, Exh. 1.)

Accordingly, the motion is denied.

III.

MOTION TO TRANSFER

A.

Legal Standard

Code of Civil Procedure section 403 states: “A judge may, on motion, transfer an action or actions from another court to that judge’s court for coordination with an action involving a common question of fact or law within the meaning of Section 404. The motion shall be supported by a declaration stating facts showing that the actions meet the standards specified in Section 404.1, are not complex as defined by the Judicial Council and that

the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action. Notice of the motion shall be served on all parties to each action and on each court in which an action is pending. Any party to that action may file papers opposing the motion within the time permitted by rule of the Judicial Council. The court to which a case is transferred may order the cases consolidated for trial pursuant to Section 1048 without any further motion or hearing.” (Code Civ. Proc., § 403.)

“A party that intends to file a motion under Code of Civil Procedure section 403 must first make a good-faith effort to obtain agreement of all parties to each case to the proposed transfer and consolidation.” (Cal. Rules of Court, rule 3.500(b).)

B. Discussion

Plaintiff moves to transfer Case No. 26WHRO00581 to this court in conjunction with the instant action. As an initial matter, the actions do not share a common question of fact and law as Case No. 26WHRO00581 involves a civil harassment claim and a request for a restraining order against Plaintiff. (RJN, Exh. 1.) The court does not find that a transfer is warranted and Plaintiff fails to provide any persuasive argument to find otherwise.

Accordingly, the motion is denied.

IV.

CONCLUSION

1. Plaintiff Joshua Dewey Stockton's Motion to Consolidate is DENIED.

2.

Plaintiff Joshua Dewey Stockton's Motion to Transfer is DENIED.